

4 APR 1990

STATEMENT OF OBJECTS AND REASONS

Under clause (4) of article 356 of the Constitution, no Proclamation issued under that article and approved by both the Houses of Parliament shall remain in force for more than three years. However, under clause (5) of the said article a resolution approving the continuance in force of a Proclamation issued under clause (1) of that article beyond a period of one year cannot be passed by either House of Parliament unless the two conditions relating to a Proclamation of Emergency being in operation to the whole or any part of the State and the certificate by the Election Commission regarding the continuance of the Proclamation issued under clause (1) of the said article are in force. It is necessary to amend the Constitution to the Legislative Assembly of the State as specified in that clause are met. The three year period in the case of Proclamation issued on 11th May 1987 with respect to the State of Punjab would be over on 10th May 1990 and, therefore, two conditions are also not fulfilled. The prevailing circumstances in the State do not hold out good prospects for free and fair elections to the State Legislative Assembly. The representatives of various political parties who attended the All-Party Meeting convened by the Government of Punjab at Chandigarh on 10th May 1989, were of the view that the prevailing conditions should be such as to enable the election to the State Legislative Assembly to be held before holding the election to the State Legislative Assembly. Clause (4) and (5) of article 356 of the Constitution are amended to take into account the above-mentioned facts and circumstances.

Bill No. 49 of 1990

THE CONSTITUTION (SIXTY-FIFTH AMENDMENT) BILL, 1990.

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further to amend the Constitution of India.

Be it enacted by Parliament in the Forty-first Year of the Republic of India as follows:—

1. This Act may be called the Constitution (Sixty-fifth Amendment) Act, 1990.

Short
title.

5 2. In article 356 of the Constitution,—

Amend-
ment of
article
356.

(a) in clause (4), after the second proviso, the following proviso shall be inserted, namely:—

10 'Provided also that in the case of the Proclamation issued under clause (1) on the 11th day of May, 1987 with respect to the State of Punjab, the reference in the first proviso to this clause to "three years" shall be construed as a reference to "three years and six months".;

(b) in clause (5), the following proviso shall be inserted at the end, namely:—

15 "Provided that nothing in this clause shall apply to the Proclamation issued under clause (1) on the 11th day of May, 1987 with respect to the State of Punjab."

STATEMENT OF OBJECTS AND REASONS

Under clause (4) of article 356 of the Constitution, no Proclamation issued under that article and approved by both the Houses of Parliament shall remain in force for more than three years. However, under clause (5) of the said article a resolution approving the continuance in force of a Proclamation issued under clause (1) of that article beyond a period of one year cannot be passed by either House of Parliament unless the two conditions relating to a Proclamation of Emergency being in operation in the whole or any part of the State and the certificate by the Election Commission that the continuation of the Proclamation issued under clause (1) is necessary on account of difficulties in holding general elections to the Legislative Assembly of the State as specified in that clause are met. The three year period in the case of Proclamation issued on 11th May, 1987 with respect to the State of Punjab would be over on 10th May, 1990 and the said two conditions are also not fulfilled. The prevailing circumstances in the State do not hold out good prospects for free and peaceful elections to the State Legislative Assembly. The representatives of various political parties who attended the All-Party Meeting convened by the Governor of Punjab at Chandigarh recently were also of the view that congenial conditions should be created first before holding the elections to the State Legislative Assembly. Clauses (4) and (5) of article 356 of the Constitution are, therefore, proposed to be amended so as to facilitate the extension of the said Proclamation up to a total period of three years and six months in relation to the State of Punjab.

2. The Bill seeks to achieve the above objects.

NEW DELHI;

The 2nd April, 1990.

MUFTI MOHAMMED SAYEED.

ANNEXURE

EXTRACT FROM THE CONSTITUTION OF INDIA

356. (1) If the President, on receipt of a report from the Governor of a State or otherwise, is satisfied that a situation has arisen in which the government of the State cannot be carried on in accordance with the provisions of this Constitution, the President may by Proclamation—

(a) assume to himself all or any of the functions of the Government of the State and all or any of the powers vested in or exercisable by the Governor or any body or authority in the State other than the Legislature of the State;

(b) declare that the powers of the Legislature of the State shall be exercisable by or under the authority of Parliament;

(c) make such incidental and consequential provisions as appear to the President to be necessary or desirable for giving effect to the objects of the Proclamation, including provisions for suspending in whole or in part the operation of any provisions of this Constitution relating to any body or authority in the State:

Provided that nothing in this clause shall authorise the President to assume to himself any of the powers vested in or exercisable by a High Court, or to suspend in whole or in part the operation of any provision of this Constitution relating to High Courts.

(2) Any such Proclamation may be revoked or varied by a subsequent Proclamation.

(3) Every Proclamation under this article shall be laid before each House of Parliament and shall, except where it is a Proclamation revoking a previous Proclamation, cease to operate at the expiration of two months unless before the expiration of that period it has been approved by resolutions of both Houses of Parliament:

Provided that if any such Proclamation (not being a Proclamation revoking a previous Proclamation) is issued at a time when the House of the People is dissolved or the dissolution of the House of the People takes place during the period of two months referred to in this clause, and if a resolution approving the Proclamation has been passed by the Council of States, but no resolution with respect to such Proclamation has been passed by the House of the People before the expiration of that period, the Proclamation shall cease to operate at the expiration of thirty days from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the Proclamation has been also passed by the House of the People.

Provi-
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(4) A Proclamation so approved shall, unless revoked, cease to operate on the expiration of a period of six months from the date of issue of the Proclamation:

Provided that if and so often as a resolution approving the continuance in force of such a Proclamation is passed by both Houses of Parliament, the Proclamation shall, unless revoked, continue in force for a further period of six months from the date on which under this clause it would otherwise have ceased to operate, but no such Proclamation shall in any case remain in force for more than three years:

Provided further that if the dissolution of the House of the People takes place during any such period of six months and a resolution approving the continuance in force of such Proclamation has been passed by the Council of States, but no resolution with respect to the continuance in force of such Proclamation has been passed by the House of the People during the said period, the Proclamation shall cease to operate at the expiration of thirty days from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the continuance in force of the Proclamation has been also passed by the House of the People.

(5) Notwithstanding anything contained in clause (4), a resolution with respect to the continuance in force of a Proclamation approved under clause (3) for any period beyond the expiration of one year from the date of issue of such Proclamation shall not be passed by either House of Parliament unless—

(a) a Proclamation of Emergency is in operation, in the whole of India or, as the case may be, in the whole or any part of the State, at the time of the passing of such resolution, and

(b) the Election Commission certifies that the continuance in force of the Proclamation approved under clause (3) during the period specified in such resolution is necessary on account of difficulties in holding general elections to the Legislative Assembly of the State concerned.

* * * * *

Provided that if any such Proclamation (not being a Proclamation revoking a previous Proclamation) is issued at a time when the House of the People is dissolved or the dissolution of the House of the People takes place during the period of two months referred to in this clause and if a resolution approving the Proclamation has been passed by the Council of States, but no resolution with respect to such Proclamation has been passed by the House of the People before the expiration of that period, the Proclamation shall cease to operate at the expiration of thirty days from the date on which the House of the People first sits after its reconstitution unless before the expiration of the said period of thirty days a resolution approving the Proclamation has been also passed by the House of the People.

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1952 SEPTEMBER 24, WEDNESDAY

(4) A Proclamation so approved shall, unless revoked, cease to operate on the expiration of a period of six months from the date of issue of the Proclamation.

Provided that it shall be lawful for a resolution approving the continuance in force of such a Proclamation to be passed by both Houses of Parliament, the Proclamation shall, unless revoked, continue in force for a further period of six months from the date on which the House of the People shall have passed a resolution approving the continuance in force of such Proclamation, but no such Proclamation shall be in force for more than three years.

Provided further that if the expiration of the House of the People which has passed a resolution approving the continuance in force of such Proclamation has been passed by the Council of State, but no resolution with respect to the continuance in force of such Proclamation has been passed by the House of the People during the said period, the Proclamation shall cease to operate at the expiration of the said period from the date on which the House of the People has passed its resolution in favour of the expiration of the said period of six months approving the continuance in force of the Proclamation, but such resolution shall be passed by the House of the People.

(5) Notwithstanding anything contained in clause (4), a resolution with respect to the continuance in force of a Proclamation approved under clause (4) for any period less than the expiration of six years from the date of issue of such Proclamation shall be passed by either House of Parliament.

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further to amend the Constitution of India.

Provided that a Proclamation of Emergency shall not be in force in the whole or parts of the State until it has been approved by the House of the People at the time of the passing of such resolution, and

(6) The Election Commission certifies that the continuance in force of the Proclamation approved under clause (4) during the period specified in such resolution is necessary in account of difficulties in holding general elections to the Legislative Assembly of the State concerned.